

OFFICE COPY

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5HR-11

26 MAY 1988
CERTIFIED MAIL
RETURN RECEIPT REQUESTED

Re: Kysor Industries Site
Cadillac, Michigan
Notice of Potential Liability and Information Request

Dear Sir or Madam:

The United States Environmental Protection Agency (U.S. EPA) has documented the release and threatened release of hazardous substances, pollutants and contaminants at the above referenced site and at the nearby Northernaire Site in the vicinity of the Cadillac Industrial Park. The U.S. EPA is presently spending public funds to conduct a remedial investigation and feasibility study of the region surrounding these sites and the Cadillac Industrial Park. These activities were undertaken pursuant to the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (CERCLA), 42 U.S.C. Section 960 et. seq., as amended by the Superfund Amendments and Reauthorization Act of 1986, Public Laws 99-499 (SARA).

These investigations have identified releases of hazardous substances, pollutants, and contaminants from your facility that contribute to the threat or potential threat to the public health or welfare or the environment posed by the above referenced sites. These studies indicate that you may be a potentially responsible party (PRP). Therefore, pursuant to Section 104 of CERCLA the purpose of this letter is to notify you of your potential liability with respect to the above reference sites. According to Section 107 of CERCLA, PRPs who may be liable include the current and former owners or operators of the site and persons who generated the hazardous substances or were involved in the transport, treatment, or disposal of them at the site. Under Section 107(a) of CERCLA, potentially responsible parties may be liable for costs incurred



by the government, through the use of public funds, in responding to any release or threatened release from the sites. Such costs can include, but are not limited to, expenditures for planning, investigations, studies, clean-up, and enforcement.

Following completion of the remedial investigation (RI) including ground-water studies, and a feasibility study (FS) U.S. EPA will determine the appropriate remedial action for the sites. It is the intent of the U.S. EPA to implement this remedy unless an agreement can be reached under which PRPs will perform the remedy. In order to encourage participation by PRPs in the remedial activities U.S. EPA plans to schedule a meeting to discuss options for coordination of anticipated remediation of groundwater contamination and control of contaminant release at the identified locations. Please respond within 14 days of the date of this letter indicating your intentions regarding your potential liability at the sites so that a meeting can be scheduled as soon as possible.

If you are already involved in discussions with State or local authorities, are engaged in voluntary action, or are involved in a lawsuit involving these sites, you may continue such activities. This letter is not intended to advise or direct you to restrict or discontinue any such activities; however, you are advised to report the status of those discussions or actions in your response to the Agency and also to provide a copy of your response to any other parties involved in those discussions or actions.

The U.S. EPA would like to encourage good faith negotiations between you and the Agency and among you and other parties potentially responsible for the sites. You may wish to schedule discussions with other potentially responsible parties regarding cleanup efforts, and organize yourselves into a single representative body to facilitate negotiations with the Agency. The names of other potentially responsible parties are enclosed to facilitate your discussions.

Additionally pursuant to the authority of Section 104(e) of CERCLA, 42 U.S.C. § 9604(e), amended by SARA Pub. L. 99-499, and pursuant to Section 3007 of the Resource Conservation and Recovery Act (RCRA), 42 U.S.C. § 6927, you are hereby requested to respond to the Information Requests enclosed. Compliance with the enclosed Information Request is mandatory. Failure to respond fully and truthfully to each and every Information Request within "30" days of receipt of this letter, or to adequately justify such failure to respond, can result in enforcement action by U.S. EPA pursuant to Section 3008 of RCRA under which U.S. EPA may seek the imposition of penalties of up to twenty-five thousand dollars (\$25,000) for each day of continued non-compliance, and/or pursuant to Section 104(e)(5) of CERCLA, as amended, which authorizes U.S. EPA to seek

penalties from a federal court of up to \$25,000 for each day of continued non-compliance. "Non-compliance" is considered by U.S. EPA to be not only failure to respond to the Request but also failure to respond completely and truthfully to each Request. Please be further advised that provision of false, fictitious, or fraudulent statements or representations may subject you to criminal penalties of up to ten thousand dollars (\$10,000) or up to five (5) years of imprisonment or both under 18 U.S.C. § 1001.

This Information Request is not subject to the approval requirements of the Paperwork Reduction Act of 1980, 44 U.S.C. 3501, et seq.

Your response to this Information Request should be mailed to the following:

Ms. Lisa Smith
U.S. EPA, Region V
Waste Management Division
CERCLA Support Section 5HR-11
230 South Dearborn Street
Chicago, Illinois 60604

If you have any legal questions, please direct such questions to Roger Grimes of the Office of Regional Counsel at (312) 886-6595. Technical questions should be directed to Robert E. Whippo, at (312) 886-4759

Due to the seriousness of the problem at the Site and the legal ramifications of your failure to respond properly, U.S. EPA strongly encourages you to give this matter your immediate attention and to respond to these Information Requests within the time specified above.

Thank you for your cooperation in this matter.

Yours truly,

Mary A. Gade, Acting Chief
Emergency and Remedial Response Branch

Attachment

cc: Sheila Huff, U.S. Department of Interior
Everett Boles, MDNR
Gary Simmons, MDNR
Dianne Roycraft, MDNR

bcc: G. Lucero, WH-527
M. Gustafson, SMS
R. Whippo, CES
R. Grimes, ORC

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8200
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M6
OSF
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ATTACHMENT I

POTENTIALLY RESPONSIBLE PARTIES
KYSOR INDUSTRIES SITE/NORTHERNAIRE PLATING
CADILLAC, MICHIGAN

Kysor Industries, Inc.
One Madison Ave.
Cadillac, MI 49601

Four Winns Company
925 Frisbee St.
Cadillac, MI 49601

Four Star Corporation
OMI International Bldg.
21439 Hoover Rd.
Warren, MI 48909

Jomar Company
c/o Ben C. Kowalski
3174 Wendover
Troy, MI 48084

Leo Ingraham Sr.
1304 Leeson Ave.
Cadillac, MI 49601

Northernair Plating Co.
c/o Willard Garwood

[REDACTED]

Top Locker Enterprises Inc.
c/o James E. Zane

[REDACTED]

R.W. Meyer Inc./Meyer Construction Co.
Robert Meyer
Box 578
300 Haynes
Cadillac, MI 49601

Willard S. Garwood

[REDACTED]